

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Nathan Vu

Department N15

Hearing Date and Time: August 31, 2026 @ 9:00 AM

TENTATIVE RULINGS: The court will endeavor to post tentative rulings on this website by 3:00 p.m. on the day before the hearing. However, ongoing proceedings may prevent posting by that time or the court may have no tentative ruling on a matter.

Once a tentative ruling has been posted, the court may not entertain requests for continuance and may not consider additional papers.

ORAL ARGUMENT: The court will hear oral argument regarding law and motion matters on the hearing date and at the time stated above, unless all parties submit on the tentative ruling. Parties are not required to give notice of intent to appear.

If you wish to submit on the tentative ruling and do not intend to appear at the hearing, please inform opposing counsel and the court clerk by electronic mail n15@occourts.org or by telephone (657) 622-5615. If all parties submit on the tentative ruling or no parties or counsel appear for the hearing, then the tentative ruling shall become the final ruling.

APPEARANCES: Parties and counsel may appear at the law and motion hearing in-person or via Zoom. Persons appearing in-person shall come to Department N15 at the North Justice Center, 1275 N. Berkeley Avenue, Fullerton, CA 92832.

Persons appearing remotely must check-in online through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings> and then clicking on the button entitled "Department N15 Judge Nathan Vu".

Anyone having difficulty appearing remotely may contact the court clerk at (657) 622-5615.

All persons appearing remotely must abide by all applicable laws and rules, including Local Rule 375, and must obtain, test the functionality of, and learn how to use the Zoom application and all necessary equipment prior to the remote hearing. More information is available at <https://www.occourts.org/media-relations/civil.html>.

COURT REPORTERS: Court reporters employed by the court are NOT normally provided for law and motion matters in civil courtrooms. If a party desires a record of a law and motion proceeding, it is the party's responsibility to arrange for a privately-retained court reporter, who may appear in-person or remotely. Parties must comply with the Court's policy on the use of privately-retained court reporters, available at https://www.occourts.org/media/pdf/Private_Retained_Court_Reporter_Policy.pdf.

1	Elected Personnel, LLC. vs. Southern California Plastics, Inc. 30-2026-01543019	<u>Application for Right to Attach Order</u> Plaintiff Elected Personnel, LLC's Application for Right to Attach Order and Order for Issuance of Writ of Attachment is CONTINUED to September 28, 2026 at 9:00 a.m. in Department N15 pursuant to the Order to Continue Hearing on Plaintiff's Application for Right to Attach Order and Order for Issuance of Writ of Attachment filed August 28, 2026 (ROA #48).
2	Pouraryan vs. Gates 30-2026-01538701	<u>Motion to Strike</u> Defendant Thomas Gates' Motion to Strike Portions of Plaintiff's Complaint is DENIED. Defendant Thomas Gates shall file an answer or other pleading in response to the Complaint within 10 days of service of the notice of ruling. (See Code Civ. Proc., § 472a, subd. (d); see also Code Civ. Proc., § 435, subd. (c).) <u>Pending Motion</u> Defendant Thomas Gates moves to strike the allegations regarding and the prayer for relief for punitive damages contained in the Complaint filed by Plaintiff Arshia Pouraryan. <u>Meet and Confer</u> A party moving to strike "shall meet and confer <i>in person or by telephone</i> with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike." (Code Civil Proc., § 435.5, subd. (a), italics added.) The meet and confer must occur at least 5 days before the date a motion to strike must be filed or the moving party shall be granted an automatic 30-day extension of time within which to file a motion to strike if the moving party files a declaration stating that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer. (Code Civil Proc., § 435.5, subd. (a)(2).) The motion to strike must include a declaration stating either:

		(A) The means by which the moving party met and conferred with the party who filed the pleading subject to the motion to strike, and that the parties did not reach an agreement resolving the objections raised by the motion to strike. (B) That the party who filed the pleading subject to the motion to strike failed to respond to the meet and confer request of the moving party or otherwise failed to meet and confer in good faith. (Code Civil Proc., § 435.5, subd. (a)(3).) Here, the declaration filed by Defendant shows that Defendant's Counsel sent a single "meet and confer e-mail" to Plaintiff's Counsel. (See Decl. of Aman A. Lal, ¶¶ 3-5, Exh. A.) Such efforts are insufficient as the parties are required to meet and confer in person or by telephone. However, "[a] determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike." (Code Civil Proc., § 435.5, subd. (a)(4).) Further, the motion is fully briefed. Therefore, the court will decide the motion on the merits. However, Defendant is encouraged to strictly comply with the requirements of the Civil Procedure Code and Rules of Court in the future. Future violations may result in the court disregarding Defendant's motion, opposition, or reply papers. <u>Standard for Motion to Strike</u> A party may move to strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) "Irrelevant" matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim, or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) A party may also request to strike legal conclusions. (Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:179 (2010).) Specifically, conclusory allegations that are not supported by factual allegations in the complaint
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		may be stricken. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6.) For example, prayers for relief that lack factual foundation may be stricken from a complaint. (See <i>Turman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63 [trial court properly struck prayer for punitive damages where complaint failed to allege sufficient facts to show that defendant acted with malice, oppression, or fraud].) The grounds for a motion to strike must appear on the face of the pleading or from matters which the court may judicially notice. (See Code Civ. Proc., § 437.) In addition, pleadings are to be construed liberally with a view to substantial justice. (Code Civ. Proc., § 452; Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:197 (2010).) "In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation." (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255, citations omitted.) <u>Striking Punitive Damages</u> To obtain punitive damages, a plaintiff must plead and prove one of the following: malice, oppression, or fraud. (See Civil Code, § 3294, subd. (a).) "Malice" is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civil Code, § 3294, subd. (a)(1).) "Oppression" means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civil Code, § 3294, subd. (a)(2).) "Fraud" is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civil Code, § 3294, subd. (a)(3).)
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		In order to survive a motion to strike, a complaint must not only allege in general terms oppression, fraud, or malice, but also plead ultimate facts in support. (See <i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166 ["The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim."], citations omitted.) Conduct carried on with a willful and conscious disregard of the rights or safety of others, but that is not "despicable," will not support an award of punitive damages. (<i>College Hospital Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 725.) "Despicable conduct" refers to circumstances that are so vile, base, or contemptible that it would be looked down on and despised by reasonable people. (<i>Ibid.</i>; <i>Scott v. Phoenix Schools, Inc.</i> (2009) 175 Cal.App.4th 702, 715.) Such conduct has been described as "having the character of outrage frequently associated with crime." (<i>Scott v. Phoenix Schools, Inc.</i>, <i>supra</i>, 175 Cal.App.4th at p. 715.) "Consequently, to establish malice, 'it is not sufficient to show only that the defendant's conduct was negligent, grossly negligent or even reckless.'" (<i>Bell v. Sharp Cabrillo Hospital</i> (1989) 212 Cal.App.3d 1034, 1044, quoting <i>Flyer's Body Shop Profit Sharing Plan v. Tigor Title Ins. Co.</i> (1986) 185 Cal.App.3d 1149, 1155.) "The mere carelessness or ignorance of the defendant does not justify the imposition of punitive damages. . . . Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate." (<i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210, citations and quotation marks omitted.) The absence of labels such as "willful," "fraudulent," "malicious" and "oppressive" from the complaint does not defeat the claim for punitive damages. (<i>Blegen v. Superior Court</i> (1981) 125 Cal.App.3d 959, 963.) "Further, even though certain language pleads ultimate facts or conclusions of law, such language when read in context with the facts alleged as to defendants' conduct may adequately plead the evil motive requisite to recovery of punitive damages." (<i>Monge v. Superior Court</i> (1986) 176 Cal.App.3d 503, 510; see also <i>id.</i> at 511
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		["Malice and oppression may be inferred from the circumstances of a defendant's conduct"].) In this case, Defendant argues that the Complaint does not support an award of punitive damages because it fails to allege ultimate facts to show that Defendant acted with conscious disregard for the rights or safety of others, which is necessary to make out malice or oppression. (See Civil Code, § 3294, subd.s (a)(1), (a)(2) [when plaintiff seeks punitive damages based on either malice or oppression, plaintiff must make out conduct by defendant that is carried out with conscious disregard of the rights or safety of another person].) However, in <i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, the Supreme Court held that: One who willfully consumes alcoholic beverages to the point of intoxication, knowing that he thereafter must operate a motor vehicle, thereby combining sharply impaired physical and mental faculties with a vehicle capable of great force and speed, reasonably may be held to exhibit a conscious disregard of the safety of others. The effect may be lethal whether or not the driver had a prior history of drunk driving incidents. (<i>Id.</i> at p. 897.) There, the Supreme Court held that the allegations of the complaint were sufficient to support an award of punitive damages where it was plead that defendant operated an automobile while under the influence of alcohol, that defendant was "an alcoholic 'well aware of the serious nature of his alcoholism' and of his 'tendency, habit, history, practice, proclivity, or inclination to drive a motor vehicle while under the influence of alcohol,'" and that the defendant "was also aware of the dangerousness of his driving while intoxicated." (<i>Id.</i> at pp. 893, 896.) While the complaint in <i>Taylor v. Superior Court</i> also alleged "a history of prior arrests, convictions and mishaps" involving driving while under the influence of alcohol, the Supreme Court did not deems these to be "essential prerequisites to the assessment of punitive damages in drunk driving cases." (<i>Id.</i> at 896.) Similarly, the Court of Appeal in <i>Dawes v. Superior Court</i> (1980) 111 Cal.App.3d 82 held that the trial court had abused its discretion in striking a request for punitive damages where the complaint alleged that the defendant was driving while intoxicated and zigzagged in and out of traffic in excess of 65 miles per hour in a 35-mile per
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		hour zone, in a crowded beach recreation area at 1:30 on a weekend afternoon. (<i>Id.</i> at p. 86.) Here, the Complaint alleges that Defendant voluntarily consumed alcohol and then drove approximately 90 miles per hour in a 65-mile-per-hour zone, made an abrupt and unsafe movement across lanes of traffic, and rear-ended Plaintiff's vehicle. (See Compl., ¶¶ 10–11., 30.) The Complaint further pleads that the California Highway Patrol determined that Defendant was the sole cause of the collision based on driving under the influence and making an unsafe turn, and that Defendant was arrested at the scene for driving under the influence. (See Compl., ¶ 12.) Taken together, these allegations go beyond alleging that Defendant drove while intoxicated. They plead voluntary conduct taken in conscious and willful disregard for the rights and safety of others. (See Compl., ¶ 30.) Accepting these allegations as true, which the court must do for purposes of this motion, the Complaint sufficiently supports an award of the punitive damages. Therefore, the court will deny the motion to strike. Plaintiff shall give notice of this ruling.
3	Ahannavard vs. Ettefagh 30-2023-01360376	<u>Motion for Attorney's Fees</u> Defendant and Cross-Complainant Marja Ettefagh's Motion for Attorneys Fees is DENIED. <u>Pending Motion</u> Defendant and Cross-Complainant Marjan Ettefagh moves for an award of attorney's fees in the amount of \$31,920 and costs in the amount of \$2,669,], pursuant to [Civil Code section 1717. <u>Standard for Motion for Attorney's Fees (in General)</u> Generally, attorney's fees are borne by the party that incurred them. (See <i>Pederson v. Kennedy</i> (1982) 128 Cal.App.3d 976, 978-79). Therefore, a party may recover attorney's fees only if provided for by contract or statute. (See Code Civ. Proc., § 1033.5, subd. (a)(10); see also <i>LNSU # 1, LLC v. Alta Del Mar Coastal Collection Community Association</i> (2023))

		94 Cal.App.5th 1050, 1081 ["Each party to an action must pay its own attorney fees unless a statute or contract requires the opposing party to pay them."].) For example, Civil Code section 1717 states that: In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs. (Civil Code, § 1717, subd. (a).) On a motion for attorney's fees, the moving party has the burden of establishing entitlement to an award, including that the fees were incurred and that they were reasonably incurred. (<i>ComputerXpress, Inc. v. Jackson</i> (2001) 93 Cal.App.4th 993, 1020; <i>Christian Research Institute v. Alno</i> (2008) 165 Cal.App.4th 1315, 1320.) Here, it is undisputed that the contract between the parties provides that: "Contractor shall be entitled to recover Attorney's fees and Costs associated with any action to enforce the terms of this agreement. Such Costs may include, but are not limited to, expert witness fees, expert testing, court costs if any, as outlined in Section 12." Pursuant to Civil Code section 1717, the attorney's fees provision applies equally to Plaintiff (who was the contractor) and Defendant (who was the homeowner). (See Civil Code, § 1717, subd. (a).) Accordingly, the court must determine whether Defendant is the prevailing party. <u>Prevailing Party</u> Civil Code section 1717 defines "prevailing party" to mean "the party who recovered a greater relief in the action on the contract." (Civil Code, § 1717, subd. (b)(1).) The "prevailing party" includes "the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant." (Code Civ. Proc., § 1032, subd. (a)(4).)
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		In this case, the court ruled in favor of Plaintiff/Cross-Defendant on his claims for breach of contract and quantum meruit but against him on his claim for foreclosure of the mechanic's lien. Relatedly, the court ruled against Defendant/Cross-Complainant on her cross-claims for breach of contract and common counts and in her favor on her cross-claim to cancel the mechanic's lien. Defendant contends that she is the prevailing party in this action because she achieved her main litigation objective to release the mechanic's lien. However, even if this were true, Defendant is not the prevailing party <i>on the contract</i>, as required by Civil Code section 1717. While Defendant argues that the attorney's fees provision in the contract is broad enough cover her action to cancel the mechanic's lien, the contract, by its terms, allows for an award of attorney's fees incurred "to enforce the terms of this agreement." The terms of the agreement were that Defendant would pay money in exchange for Plaintiff constructing an accessory dwelling unit. Defendant's attempt to cancel the mechanic's lien that Plaintiff placed on her property after the parties fell into disagreement about the performance of the agreement was not an attempt to enforce the terms of the agreement. Rather, the claims and cross-claims for breach of contract, quantum meruit, and common counts were the causes of action that sought to enforce the terms of the agreement. Thus, Defendant/Cross-Complainant is not the prevailing party on the contract. <u>Incomplete Relief or Non-Monetary Relief</u> However, even Defendant's cross-claim to cancel the mechanic's lien qualified as an action "to enforce the terms of this agreement," Defendant would still not be the prevailing party here. "If neither party achieves a complete victory on all the contract claims, it is within the discretion of the trial court to determine which party prevailed on the contract or
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		whether, on balance, neither party prevailed sufficiently to justify an award of attorney fees." (<i>Scott Co. of California v. Blount, Inc.</i> (1999) 20 Cal.4th 1103, 1109.) The court has the responsibility to determine which party is the prevailing party, and "may also determine that there is no party prevailing on the contract for purposes of this section." (<i>Ibid.</i>) "[T]ypically, a determination of no prevailing party results when both parties seek relief, but neither prevails, or when the ostensibly prevailing party receives only a part of the relief sought." (<i>Hsu v. Abbata, supra</i>, 9 Cal.4th at p. 875; see also <i>id.</i> at p. 876 ["[T]he trial court [retains] a measure of discretion to find no prevailing party when the results of the litigation are mixed."].) In addition, "[i]f any party recovers other than monetary relief and in situations other than as specified, the 'prevailing party' shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034." (Code Civ. Proc., § 1032, subd. (a)(4).) As the Court of Appeals has explained: In these situations, "the trial court in its discretion determines the prevailing party, comparing the relief sought with that obtained, along with the parties' litigation objectives as disclosed by their pleadings, briefs, and other such sources." Thus, the trial court determines whether the party succeeded at a practical level by realizing its litigation objectives and the action yielded the primary relief sought in the case. (<i>Friends of Spring Street v. Nevada City</i> (2019) 33 Cal.App.5th 1092, 1104, citations omitted, quoting <i>On-Line Power, Inc. v. Mazur</i> (2007) 149 Cal.App.4th 1079, 1087.) "The prevailing party determination is to be made only upon final resolution of the contract claims and only by a 'comparison of the extent to which each party ha[s] succeeded and failed to succeed in its contentions." (<i>Hsu v. Abbata, supra</i>, 9 Cal.4th at p. 876.) "[I]n determining litigation success, courts should respect substance rather than form, and to this extent should be guided by 'equitable considerations.'" (<i>Id.</i> at p. 877.)
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		In identifying the prevailing party, the court may base its decision "on a pragmatic definition of the extent to which each party has realized its litigation objectives" (<i>Santisas v. Goodin</i> (1998) 17 Cal.4th 599, 622.) Here, a review of the Complaint, Cross-Complaint, and each party's conduct of the trial reveals that the primary litigation objective was to obtain monetary relief for the other party's alleged breach of the contract. The efforts to foreclosure on the mechanic's lien by (Plaintiff/Cross-Defendant) and to cancel the mechanic's lien (by Defendant/Cross-Complainant) were only taken to support the primary litigation objective of obtaining monetary relief. Here, Defendant did not obtain her primary litigation objective of obtaining monetary relief. In fact, Plaintiff alone received a monetary judgment. Although Defendant ultimately prevailed on her cross-claim to cancel the mechanic's lien, the pleadings and conduct of the trial show that this was not Defendant's main litigation objective. Defendant/Cross-Complainant obtained judgment in her favor on only one the causes of action that related to the mechanic's lien and thus, did not obtain her primary litigation objective. Therefore, the court will exercise its discretion and find that Defendant/Cross-Complainant is not the prevailing party here. Therefore, the court will deny Defendant/Cross-Complainant's motion for attorney's fees. <u>Costs</u> Generally, the "prevailing party" is entitled as a matter of right to recover costs of suit in any action or proceeding. (See Code Civ. Proc., § 1032, subd. (b).) For the reasons explained above, Defendant/Cross-Complainant is not the prevailing party, and therefore, is not entitled to costs. Thus, the court will deny Defendant/Cross-Complainant's motion for costs. Plaintiff/Cross-Defendant shall give notice of this ruling.
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4	Arcos vs. General Motors LLC 30-2025-01483295	<u>Motion for Attorney's Fees</u> Plaintiff Juliana Arcos' Motion for Attorney's Fees, Costs, and Expenses is GRANTED in part and DENIED in part. Defendant General Motors LLC is ORDERED to pay to Plaintiff Juliana Arcos reasonable attorney's fees in the amount of \$17,075.50 and costs in the amount of \$798.80 within 30 days of service of the notice of ruling. Plaintiff Juliana Arcos' evidentiary objections to the Declaration of Brian Whittemore in Support of General Motors, LLC's Opposition to Plaintiff's Fee Motion are OVERRULED as to the first sentence of objection number 1, and SUSTAINED as to the second sentence of objection number 1 and the entirety of objection number 2. <u>Pending Motion</u> Plaintiff Juliana Arcos moves for an award of attorney's fees and costs in the amount of \$21,869.80 pursuant to the Song-Beverly Consumer Warranty Act (Song-Beverly Act), Civil Code section 1790, <i>et seq.</i> <u>Standard for Motion for Attorney's Fees</u> Generally, attorney's fees are borne by the party that incurred them. (See <i>Pederson v. Kennedy</i> (1982) 128 Cal.App.3d 976, 978-79). Therefore, a party may recover attorney's fees only if provided for by contract or statute. (See Code Civ. Proc., § 1033.5, subd. (a)(10); see also <i>LNSU # 1, LLC v. Alta Del Mar Coastal Collection Community Association</i> (2023) 94 Cal.App.5th 1050, 1081 ["Each party to an action must pay its own attorney fees unless a statute or contract requires the opposing party to pay them."].) For example, the Song-Beverly Consumer Warranty Act (Song-Beverly Act), Civil Code section 1790 <i>et seq.</i>, states that: If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.
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		(Civ. Code, § 1794, subd. (d).) The legislature understood that “the prospect of having to pay attorney fees even if one wins a lawsuit can serve as a powerful disincentive to the unfortunate purchaser of a malfunctioning automobile.” (<i>Murillo v. Fleetwood Enter., Inc.</i> (1998) 17 Cal.4th 985, 994.) Thus, by allowing an award of attorney’s fees to the prevailing plaintiff in a Song-Beverly Act case, “our Legislature has provided injured consumers strong encouragement to seek legal redress in a situation in which a lawsuit might not otherwise have been economically feasible.” (<i>Ibid.</i>) On a motion for attorney’s fees, the moving party has the burden of establishing entitlement to an award. (<i>ComputerXpress, Inc. v. Jackson</i> (2001) 93 Cal.App.4th 993, 1020.) <u>Prevailing Buyer</u> The Song-Beverly Act does not define the term “prevailing buyer”. However, there is no dispute in this case that Plaintiff is the prevailing buyer and is entitled to attorney’s fees. <u>Lodestar Calculation of Attorney’s Fees</u> The calculation of attorney’s fees under the Song-Beverly Act is based on the lodestar method, which multiplies the number of hours reasonably expended by a reasonable hourly rate. (<i>Graciano v. Robinson Ford Sales</i> (2006) 144 Cal.App.4th 140, 154; <i>Robertson v. Fleetwood Travel Trailers of California, Inc.</i> (2006) 144 Cal.App.4th 785, 817-819.) When using this method, the court begins by determining the reasonable hours the prevailing party’s attorney spent on the case and multiplying that number by the reasonable hourly rate. (See <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1131-1134; <i>Christian Research Institute v. Alnor</i> (2008) 165 Cal.App.4th 1315, 1321.) However, the prevailing party should not receive a “windfall” through an award of reasonable attorney’s fees. (<i>Ketchum vs. Moses, supra</i>, 24 Cal.4th at p. 1132.) Thus, a prevailing buyer under the Song-Beverly Act has the burden of “showing that the fees incurred were ‘allowable,’ were ‘reasonably necessary to the conduct of the litigation,’ and were ‘reasonable in amount.’” (<i>Levy v.</i>
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		<i>Toyota Motor Sales, U.S.A., Inc.</i> (1992) 4 Cal.App.4th 807, 816.) "To that end, the court may require [a] defendant[] to produce records sufficient to provide 'a proper basis for determining how much time was spent on particular claims.' The court also may properly reduce compensation on account of any failure to maintain appropriate time records." (<i>ComputerXpress, Inc. v. Jackson, supra</i>, 93 Cal.App.4th at p. 1020, quoting <i>Hensley v. Eckerhart</i> (1983) 461 U.S. 424, 437, fn.12.) However, once an attorney has presented evidence of her or his actual time spent and hourly rate charged, the time and hourly rate are presumed to be reasonable. (<i>Mandel v. Lackner</i> (1979) 92 Cal.App.3d 747, 761; see <i>Horsford v Board of Trustees of California State University</i> (2005) 132 Cal.App.4th 359, 396 ["[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous."]; <i>Raining Data Corp. v. Barrenechea</i> (2009) 175 Cal.App.4th 1363, 1367 [declarations of counsel are "sufficient to meet the burden of establishing the reasonableness of the fees incurred, without the need to produce copies of counsel's detailed billing statements"].) "As the trial court 'is in the best position to value the services rendered by the attorneys in his or her courtroom,' we leave it in the trial court's discretion to determine the amount of reasonable attorney fees and costs to award . . . under the lodestar method." (<i>Frym v. 601 Main Street LLC</i> (2022) 82 Cal.App.5th 613, 622, quoting <i>569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.</i> (2016) 6 Cal.App.5th 426, 437; see also <i>Ketchum v. Moses, supra</i>, 24 Cal.4th at p. 1132 ["The trial judge is 'the best judge of the value of professional services rendered in his court.'"].) <u>Reasonable Hourly Rate</u> The reasonable hourly rate is based on the reasonable market value of the attorney's services. (See <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1094-1095 or <i>PLCM Group, Inc. v. Drexler, supra</i>, 22 Cal.4th at p. 1094-1095.) This standard applies regardless of how much the attorney actually charged the client. (See <i>ibid.</i>) Thus, the same reasonable hourly rate will apply whether the attorney charged nothing for their services, charged below-market or discounted rates, represented the client on a contingent fee basis, or are in-house counsel paid a
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		fixed salary. To determine the reasonable market value of the legal services provided, the court must look to the range of reasonable rates charged by and judicially awarded to comparable attorneys for comparable work. (See <i>Children's Hospital & Medical Center v. Bonta</i> (2002) 97 Cal.App.4th 740, 783; see also <i>PLCM Group v. Drexler, supra</i>, 22 Cal.4th at p. 1095 ["[The] reasonable hourly rate is that prevailing in the community for similar work."].) The party requesting fees has the initial burden of producing evidence sufficient to support the reasonableness of the billing rates requested. (See <i>Davis v. City of San Diego</i> (2003) 106 Cal.App.4th 893, 903.) If the moving party meets its burden, the burden shifts to the opposing party to produce admissible evidence sufficient to show that the rates requested are not reasonable. (See <i>Graciano v. Robinson Ford Sales, Inc., supra</i>, 144 Cal.App.4th at p. 155 [finding court erred in reducing rates where evidence of reasonableness of rate requested was undisputed].) "In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41, citations omitted; see also <i>Heritage Pacific Financial, LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1009.) The value of legal services performed in a case is a matter of which the trial court has its own expertise. (<i>PLCM Group v. Drexler, supra</i>, 22 Cal.4th at p. 1096.) The trial court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (<i>Ibid.</i>) "It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court." (<i>Melnyk v. Robledo</i> (1976) 64 Cal.App.3d 618, 623.) Plaintiff's Counsel billed at a rate of \$215 per hour for paralegals and a range of \$470-\$560 per hour for attorneys. Based on its own knowledge and familiarity with the legal
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market, and the experience, skill, and reputation of Plaintiff's Counsel, the court finds that the rates requested are somewhat high and reduces them as follows:

Name	Rate
Jordan G. Cohen	\$500
Bobby C. Walker	\$400
Jasmine Song	\$375
Mark Noel	\$425
Paralegals	\$150

These reduced rates reflect the reasonable market rate for an attorney or paralegal with similar experience and background doing similar work.

Hours Reasonably Expended

"An award of attorney fees 'should ordinarily include compensation for *all* the hours *reasonably spent*, including those relating solely to the fee.'" (*Frym v. 601 Main Street LLC* (2022) 82 Cal.App.5th 613, 619, quoting *Ketchum v. Moses, supra*, 24 Cal.4th at p. 1131 [award of attorney's fees "may include not only the fees incurred with respect to the underlying claim, but also the fees incurred in enforcing the right to mandatory fees."].)

The prevailing party has the burden to present verified time records showing the hours spent on the case." (*Horsford v. Board of Trustees* (2005) 132 Cal.App.4th 359, 396.)

However, once they are properly admitted, "the verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (*Ibid.*)

In addition, the declarations of counsel are "sufficient to meet the burden of establishing the reasonableness of the fees incurred, without the need to produce copies of counsel's detailed billing statements." (*Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1367.)

Nonetheless "[a] trial court may not rubber stamp a request for attorney fees, but must determine the number of hours reasonably expended." (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271-272.)

Therefore, prevailing parties should be compensated only for hours reasonably spent on fee-related issues. (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 635.)

		As the Court of Appeal has explained: Although [] billing statements in support of a fee request form the “starting point” for determining the “hours reasonably expended” in a lodestar calculation, the trial court is not bound to accept these hours and may reduce them if it concludes the attorneys performed work unrelated to the anti-SLAPP motion, or represented work that was unnecessary or duplicative or excessive in light of the issues fairly presented. (<i>569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.</i>, <i>supra</i>, 6 Cal.App.5th at p. 441, quoting <i>Christian Research Institute v. Alnor</i>, <i>supra</i>, 165 Cal.App.4th at pp. 1324, 1326; see <i>Graham v. DaimlerChrysler Corp.</i> (2004) 34 Cal.4th 553, 579-580 [court need not include inefficient or duplicative efforts when awarding attorney’s fees].) In addition, the court may reduce the hours it determines were excessive or not supported. (See <i>Christian Research Institute v. Alnor</i> (2008) 165 Cal.App.4th 1315, 1326-29 [affirming award for 71 hours of attorney’s time in case where attorney sought fees for over 600 hours].) For example, the court may reduce the number of hours based on considerations of “whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended.” (<i>Christian Research Institute v. Alnor</i>, <i>supra</i>, 165 Cal.App.4th at p. 1320.) The amount of attorney’s fees awarded lies within the sound discretion of the trial court. (See <i>Christian Research Institute v. Alnor</i> (2008) 165 Cal.App.4th 1315, 1321.) Here, Plaintiff’s Counsel have produced their billing records and Defendant challenges several categories of billings: • Clerical work: Defendant challenges 3.8 hours of clerical work and asks the court to either strike all clerical work or reduce the time by 5-10%. The court has reviewed these time entries and finds that the time spent was reasonable. Further, paralegals, who are billed at a lower rate performed all of these tasks, rather than attorneys. The court will not reduce any time related to clerical work.
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		• Duplicate work: Defendant challenges time entries by multiple timekeepers as duplicative in May 2025, June 2025, October 2025, and November 2025. Defendant does not identify any specific time entry, but suggests a 10-15% reduction. The party opposing an attorneys’ fee motion bears the burden of proof and can either “attack the itemized billings with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable.” (<i>Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.</i> (2008) 163 Cal.App.4th 550, 563–564.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (<i>Ibid.</i>) Here, Defendant’s general arguments that the attorney’s fees requested are duplicative without reference to any specific billing entries is not sufficient. The court will not reduce any time that Defendant describes as duplicative. • Unreasonable Entries: Defendant identifies five entries by Counsel Jasmine Song and contends that these entries are unreasonable. The court has reviewed these time entries and does not find that the time spent on these five entries was unreasonable. The court will not reduce any of the time that Defendant describes as unreasonable. • Fees related to the Motion: Defendant contends that the amount of fees that Plaintiff incurred in relation to the request for attorney’s fees and costs is excessive. The court agrees and will reduce 0.6 hours of Counsel Jasmine Song’s time related to preparation of the memorandum of costs. Based on the court’s analysis above, the court finds the following to be reasonable:				
		<table><tr><th>Name</th><th>Rate</th><th>Hours</th><th>Total Billed</th></tr></table>	Name	Rate	Hours	Total Billed
Name	Rate	Hours	Total Billed			

Jordan G. Cohen	\$500	5.3	\$2,650
Bobby C. Walker	\$400	1.8	\$720
Jasmine Song	\$375	27.9	\$10,463
Mark Noel	\$425	0.2	\$85
Alexis Valdovinos	\$150	1.6	\$240
Destiny Olvera	\$150	4.6	\$690
Araceli Alatorre	\$150	2.4	\$360
Jonathan Avalos	\$150	2.0	\$300
Bessy Salazar	\$150	1.0	\$150
Maria Chavarin	\$150	0.7	\$105
Total		47.5	\$15,763

Defendant also objects to anticipated fees related to the drafting of the reply to this motion. The court agrees that the amount of time is excessive and reduces 1.5 hours of Counsel Jasmine Song's time.

Accordingly, Plaintiff is entitled to recover an additional 3.5 hours of work by Jasmine Song related to the drafting of the reply for this motion and appearing at the hearing for an additional \$1,312.50.

Therefore, the court will award Plaintiff \$17,075.50 in reasonable attorney's fees for a straightforward Song-Beverly action resolved with limited law and motion, no expert discovery, and no trial preparation.

Costs

Generally, the prevailing party is entitled, as a matter of right, to recover costs in any action or proceeding. (See Code Civ. Proc., § 1032, subd. (b); *Foothill-De Anza Comm. College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29-30.)

In addition, the Song-Beverly Act specifically states that "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

To recover costs, the prevailing party must file and serve a memorandum of costs "within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment

		or dismissal, or within 180 days after entry of judgment, whichever is first.” (Cal. Rules of Court, rule 3.1700(a).) The nonprevailing party then has 15 days after service of the memorandum of costs to file a motion to strike a cost altogether, or to tax the cost and reduce it. (Cal. Rules of Court, rule 3.1700, subd. (b).) If the items on a memorandum of costs appear to be proper on their face, the verified memorandum of costs is <i>prima facie</i> evidence of their validity and the burden is on the party seeking to strike or tax costs to show they were not reasonable or necessary. (<i>Ladas v. California State Auto. Ass’n, supra</i>, 19 Cal.App.4th at p. 774.; see also <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131 [“If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they are not reasonable or necessary.”].) Here, Plaintiff timely filed its memorandum of costs prior to the date on which judgment was entered. (See Cal. Rules Court, rule 3.1700(a)(1) [deadline to file and serve memorandum of costs is earlier of 15 days after service of notice of entry of judgment or 180 days after entry of judgment].) Plaintiff seeks \$798.80 in costs. Defendant did not file a motion to strike or costs and in its opposition to the motion, Defendant did not object to any of Plaintiff’s claimed costs. Thus, Defendant has waived any arguments regarding the costs. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) The court will awards Plaintiff costs of \$798.80. Plaintiff shall give notice of this ruling.
5	Lemus vs. BluKey 30-2023-01303205	<u>Motion to Set Aside</u> Defendant Hung Nguyen’s Motion to Vacate and Set Aside Entry of Default and Default Judgment is GRANTED.

		The Entry of Default against Defendant Hung Nguyen dated June 27, 2024 (ROA #48) is VACATED. The Judgment by Default entered by the court dated September 4, 2025 (ROA #68) is VACATED as to Defendant Hung Nguyen. Defendant Hung Nguyen is ORDERED to review and amend the proposed answer and to file and serve an answer that is compliant with the requirements of the Civil Procedure Code and California Rules of Court within 30 days of this ruling. <u>Pending Motion</u> Defendant Hung Nguyen moves to set aside the default entered against him on June 27, 2024 by Plaintiff Jonathan Lemus (Plaintiff) and the default judgment entered against him on September 4, 2025. <u>Standard to Set Aside Entry of Default and Default Judgment</u> Civil Procedure Code section 473.5 provides that: When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. (Code Civ. Proc., § 473.5, subd. (a).) A motion brought pursuant to Section 473.5 must be "accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect" as well as "a copy of the answer, motion, or other pleading proposed to be filed in the action." (Code Civ. Proc., § 473.5, subd. (b).) Further, Civil Procedure Code section 473(d) states that "[t]he court . . . may, on motion of either party after notice to the other party, set aside any void judgment or order." ((Code Civ. Proc., § 473, subd. (d).) In fact, "if a default judgment was entered against a defendant who was not served with a summons as required by statute, the judgment is void, as the court lacked jurisdiction in a fundamental sense over the party and lacked authority to enter judgment." (<i>Kremerman v.</i>
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		<i>White</i> (2021) 71 Cal.App.5th 358, 370.) "Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (<i>Elston v. City of Turlock</i> (1985) 38 Cal.3d 227, 233, superseded by statute, on other grounds, as discussed in <i>Tackett v. City of Huntington Beach</i> (1994) 22 Cal.App.4th 60, 64.) "Section 473 is often applied liberally where the party in default moves promptly to seek relief, and the party opposing the motion will not suffer prejudice if relief is granted." (<i>Ibid.</i>) Here, Plaintiff applied for an order to serve Defendant Hung Nguyen with the Summons and the Complaint – Personal Injury, Property Damage, Wrongful Death (Complaint) by publication. (See ROA #44.) Plaintiff's application stated that the Orange County Reporter would most likely give actual notice to Defendant. (See <i>ibid.</i>) The court then issued an order allowing service of the Summons and Complaint to be effectuated by publication the Orange County Reporter. (See <i>ibid.</i>) On June 25, 2024, Plaintiff filed a proof of service showing that the Summons and Complaint had been published in the Orange County Reporter on April 17, 2025; April 24, 2024; May 1, 2024; and May 8, 2024. (See ROA #46.) As a result, on June 27, 2024, default was entered against Defendant Hung Nguyen, (see ROA #48), and on September 4, 2025, a default judgment in the amount of \$1,107,220.11 was issued against Defendant Hung Nguyen, among others, (see ROA #68). However, with this motion, Defendant Hung Nguyen submitted a declaration stating that he has resided continuously in Waco, Texas since approximately February 2023. (See Decl. of Hung Nguyen, ¶ 2.) Defendant Hung Nguyen averred that because lives in Texas, he had no knowledge of the publication of the Summons and Complaint and no reason to see it. (See <i>id.</i>, ¶ 5.) He also declared that he was never personally served with the Summons and Complaint and did not receive notice of this lawsuit by mail, electronic mail, or any other means. (See <i>id.</i>, ¶ 3.)
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	Defendant Hung Nguyen further stated that he was informed only in March of 2026 that Plaintiff attempted to serve him by publication. (See <i>id.</i>, ¶ 4.) Thus, Defendant Hung Nguyen had no actual notice of this lawsuit until after a default had been entered, when his daughter informed him. (See <i>id.</i>, ¶ 6.) Defendant Hung declares that, immediately upon learning of the matter, he retained counsel and took prompt action. (See <i>id.</i>, ¶ 8.) Defendant Hung Nguyen further asserts that he does not know Plaintiff and never hired him. (See <i>id.</i>, ¶ 7.) Defendant Hung Nguyen also attaches a proposed answer to his declaration. (See <i>id.</i>, ¶ 9, Exh. B.) Here, Defendant Hung Nguyen has met his burden to show that he meets the requirements of Section 473.5 and 473(d). For service by publication, the Civil Procedure Code requires that the summons be published in a newspaper that is most likely to give actual notice to the party being served. (See Civ. Proc. Code § 415.50, subd. (b).) While Plaintiff's application for service by publication satisfied the prerequisites necessary for the court to grant said application and to permit publication in the Orange County Reporter, Defendant presents unchallenged evidence that he did not reside in Orange County, or even in the State of California, at the time service via publication was performed. Thus, Defendant has established that publication in the Orange County Reporter was not most likely to give him actual notice and, in fact, did not give him actual notice of the lawsuit against him. In response, Plaintiff has not filed an opposition or responded to motion. Thus, Plaintiff has waived any arguments regarding setting aside the entry of default and default judgment against Defendant Hung Nguyen. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].)
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		Therefore, given the liberal policy of favoring a determination on the merits, the court will grant the motion to set aside. However, the proposed answer attached to the Declaration of Hung Nguyen is riddled with typographical errors and nonsensical sentences and paragraphs. Therefore, the court will order that Defendant Hung Nguyen review and amend the proposed answer and file the proposed answer only after it is modified to be compliant with the Civil Procedure Code and California Rules of Court. Defendant Hung Nguyen shall give notice of this ruling.
6	Perez vs. General Motors, LLC 30-2024-01425638	<u>Motion to Strike and/or Tax Costs</u> Defendant General Motors LLC's Motion to Tax Counsel's Memorandum of Costs is DENIED. Plaintiffs Arturo Perez and Maria Torres are ORDERED to file and serve and Amended Memorandum of Costs that includes the actual cost of a court reporter for the hearing on this motion. <u>Pending Motion</u> Defendant General Motors LLC moves to tax \$1,073.68 of the \$1,609.88 costs contained in Plaintiffs Arturo Perez's and Maria Torres' Memorandum of Costs. <u>Standard to Strike and/or Tax Costs</u> Generally, the "prevailing party" is entitled as a matter of right to recover costs of suit in any action or proceeding. (See Code Civ. Proc., § 1032, subd. (b); <i>Santisas v. Goodin</i> (1998) 17 Cal.4th 599, 606.) Civil Procedure Code section 1033.5 enumerates the specific costs that are recoverable by the prevailing party in a civil action. (See Code Civ. Proc, § 1033.5.) Section 1033.5 also provides that the court may award costs not expressly described in the statute for expenses that are "reasonably necessary to the conduct of the litigation" and are "reasonable in amount." (Code Civ. Proc, § 1033.5, subd. (c)(2)-(4).) While the trial court has discretion to decide whether a cost item was reasonably necessary, the trial court does

		not have discretion to award a cost item that is not statutorily authorized. (<i>Ladas v. California State Auto. Ass'n</i> (1993) 19 Cal.App.4th 761, 774.) In addition, the Song-Beverly Act states that "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d.)) To recover costs, the prevailing party must file and serve a memorandum of costs "within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." (Cal. Rules of Court, rule 3.1700(a).) The nonprevailing party then has 15 days after service of the memorandum of costs to file a motion to strike a cost altogether, or to tax the cost and reduce it. (Cal. Rules of Court, rule 3.1700, subd. (b).) If the items on a memorandum of costs appear to be proper on their face, the verified memorandum of costs is <i>prima facie</i> evidence of their validity and the burden is on the party seeking to strike or tax costs to show they were not reasonable or necessary. (<i>Ladas v. California State Auto. Ass'n, supra</i>, 19 Cal.App.4th at p. 774.; see also <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131 ["If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they are not reasonable or necessary."].) However, once an item is shown to be not reasonable or necessary, it is put in issue and the burden of proof shifts to the party claiming the cost. (<i>Ibid.</i>) This burden is met by providing sufficient detail as to the reasonableness of the costs incurred. (See <i>Thon v. Thompson</i> (1994) 29 Cal.App.4th 1546, 1548-1549.) Here, Defendant contends that the following costs requested by Plaintiffs are without merit, unreasonable, unsupported, and/or unnecessary: Filing fees: Defendant seeks to tax/strike \$180.00 in filing fees related to discovery motions as unnecessary;
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		- Jury fees: Defendant seeks to tax/strike \$150 in jury fees because the case never went to trial and was settled; - Court reporter fees: Defendant seeks to strike/tax \$550 in court reporter fees given that Plaintiff failed to provide any documentary evidence to substantiate these costs; and - Electronic filing fees: Defendant seeks to strike/tax \$193.69 in filing fees as being unsubstantiated. Defendant cites to Section 1033.5 to support its arguments and asserts that the costs are not recoverable because they were not reasonably necessary for the conduct of litigation. However, Defendant fails to address the fact that Plaintiffs may also rely on Section 1794, which is broader and more expansive than section 1033.5. The court has reviewed the disputed costs and finds that the filing fees, jury fees, and electronic filing fees to which Defendant objects are reasonable and awardable under Section 1794 and/or Section 1033.5. With respect to the court reporter fees, Plaintiffs contend that this is the anticipated expense that Plaintiffs will incur for the September 21, 2026 hearing on the motion for attorney's fees. While Plaintiffs may recover the costs of a court reporter for a necessary hearing, the actual amount of these costs cannot be determined at this time. Therefore, the court will deny the motion as it relates to the filing fees, jury fees, and filing fees, and grant the motion as it relates to the court reporter fees. However, Plaintiffs may amend the memorandum of costs to add court reporter fees once those costs actually are incurred. Plaintiffs shall give notice of this ruling.
7	ODK Capital, LLC vs. The Tradesman Electric, Inc. 30-2025-01487373	<u>Motion to Set Aside</u> Defendant Thomas Sheltraw's Motion to Set Aside Default is GRANTED.

		The Entry of Default against Defendant Thomas Sheltraw dated January 13, 2026 (ROA #35) is VACATED. Defendant Thomas Sheltraw shall file and serve the proposed Answer – Contract that is attached as Exhibit 1 to the Declaration of Thomas Sheltraw within 15 days of this ruling. Plaintiff ODK Capital, LLC’s Request for Court Judgment (ROA #35) is DENIED without prejudice. <u>Pending Motion</u> Defendant Thomas Sheltraw (Defendant Sheltraw) moves to set aside the default entered against him on January 13, 2026 by Plaintiff ODK Capital, LLC (Plaintiff). <u>Standard to Set Aside Entry of Default</u> The Civil Procedure Code grants the court discretion to “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) “Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.” (<i>Elston v. City of Turlock</i> (1985) 38 Cal.3d 227, 233, superseded by statute, on other grounds, as discussed in <i>Tackett v. City of Huntington Beach</i> (1994) 22 Cal.App.4th 60, 64.) “Section 473 is often applied liberally where the party in default moves promptly to seek relief, and the party opposing the motion will not suffer prejudice if relief is granted.” (<i>Ibid.</i>) Nonetheless, the requirement that the judgment or order have been entered through “inadvertence, surprise, excusable neglect, or mistake” is “not meaningless, and the party requesting such relief must affirmatively show that the situation is one which clearly falls within such category.” (<i>In re Wolper’s Estate</i> (1956) 146 Cal.App.2d 249, 251.) As the Court of Appeal has explained: It is obvious that a party who seeks relief under [section 473] must make a showing that due to some mistake, either of fact or of law, of himself [or herself] or of his [or her] counsel, or through some inadvertence, surprise or neglect which may properly be considered excusable, the judgment or
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		order from which he [or she] seeks relief should be reversed. In other words, a burden is imposed upon the party seeking relief to show why he [or she] is entitled to it, and the assumption of this burden necessarily requires the production of evidence. (<i>Hewins v. Walbeck</i> (1943) 60 Cal.App.2d 603, 609-610.) Thus, in a motion to set aside a default judgment or order under Section 473(b), the initial burden is on the moving party to prove mistake, inadvertence, surprise, or excusable neglect by a "preponderance of the evidence." (<i>Kendall v. Baker</i> (1988) 197 Cal.App.3d 619, 624.) In addition, an "[a]pplication for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, <i>otherwise the application shall not be granted . . .</i>" (Code Civ. Proc., § 473, subd. (b), italics added.) Here, Defendant Sheltraw has established that entry of default resulted from excusable mistake, inadvertence, surprise, or neglect. Defendant Sheltraw attempted to file a timely answer, but failed to pay the filing fee, which resulted in the answer being voided. (See ROA #17.) Further, Defendant Sheltraw attached a proposed answer as Exhibit 1 to his declaration. (See Decl. of Thomas Sheltraw, Exh. 1.) Therefore, Defendant Sheltraw has met his burden under Section 473(b). In response, Plaintiff has filed a Non-Opposition to Defendant's Motion to Set Aside Default to Allow Defendant's Answer to Complaint, in which it states that "Plaintiff does not oppose Defendant Thomas Sheltraw's Motion to Set Aside the Default and Default judgement as it pertains to him." (See ROA #52 at p. 1.) Therefore, given the liberal policy of favoring a determination on the merits, the court will grant the motion to set aside. Plaintiff has requested a default judgment against Defendant Sheltraw and Defendant The Tradesman Electric, Inc.
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		A default judgment may not be issued against Defendant Sheltraw because the court has vacated entry of default against him. A default judgment may not be issued against Defendant The Tradesman Electric, Inc. at this time. Under the one judgment rule, any judgment must encompass both Defendant Sheltraw and Defendant The Tradesman Electric, Inc. unless good cause is shown pursuant to Civil Procedure Code section 579. In this case, no separate judgment has been requested and no good cause has been shown. Accordingly, the court will deny Plaintiff's request for a default judgment without prejudice. (fn.1) (fn.1) Defendant Sheltraw also requests that the court deny Plaintiff's request for default judgment against both Defendants due to Plaintiff's failure to comply with a mandatory arbitration provision. However, the issue of a default judgment is moot for the reasons stated. The court clerk shall give notice of this ruling.
8	Ferron vs. Lucidi Construction, Inc. 30-2022-01268483	<u>Motion for Summary Judgment and/or Adjudication</u> There is no tentative ruling at this time. The court will hear from parties or their counsel.
9	Doe vs. Roe Counselor; Roe School 30-2022-01291594	<u>Motion for Summary Judgment and/or Adjudication</u> Defendant Huntington Beach City School District's Motion for Summary Judgment, or in the Alternative, Summary Adjudication of the Issues is CONTINUED to pursuant to the stipulation of the parties.